

Tentative Rulings
September 14, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

22. *DeLaFuente Jimenez v. Diamond Truck Sales, et al*, Case No. CIVSB2534109
Plaintiff's MTC Responses from Diamond Truck to Form Interrogatories, Set One
Plaintiff's MTC Responses from Diamond Truck to Form Interrogatories Employment, Set One
Plaintiff's MTC Responses from Diamond Truck to Special Interrogatories, Set One
Plaintiff's MTC Responses from Diamond Truck to Requests for Production, Set One
9/14/26, 9:00 a.m., Dept. S-17

As to the Motions to Compel Responses: The Court would **GRANT** these unopposed motions. Responses will be due within thirty (30) days.

As to Sanctions: The Court would also order Defendant Diamond Truck to pay sanctions in the amount of \$2,560, in total, within thirty (30) days of this ruling. The Court notes that the motions were unopposed and that they were largely duplicative.

As to the Motions to Compel, a failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant those motions.

23. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion to Vacate Orders Entered Between 4/24/26 and 4/28/26
9/14/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

Analysis

Defendant brings this motion to vacate based on the premise that the court lacked jurisdiction when it granted Plaintiff summary judgment, a decision that then generated the unlawful detainer judgment against Defendant. Defendant argues Plaintiff lacked jurisdiction because four days prior to the initial hearing on the summary judgment motion, Defendant filed a notice of removal to federal court, seeking to consolidate this action with one Defendant had filed against Plaintiff.

Generally speaking, "the state court's jurisdiction is suspended when the defendant seeking removal gives notice to the state court clerk, and it is reacquired when the district court clerk gives notice to the state court clerk in the form of a certified copy of the remand order." (*Spanair S.A. v. McDonnell Douglas Corp.* (2009) 172 Cal.App.4th 348, 356.) However, the Court of Appeal, Fourth District, however, "recognize[s] a narrow exception to the general rule that state courts cannot proceed further when a

defendant removes the case.” (*ClipperJet Inc. v. Tyson* (2019) 38 Cal.App.5th 521, 528.) “We recognize this limited exception where there is a frivolous or duplicative notice of removal.” (*ClipperJet, supra*, 38 Cal.App.5th at p. 528.)

Here, the court, when previously assigned to Judge Keh, found that the *ClipperJet* exception applies, and thoroughly listed his reasoning. (See Minute Order, April 24, 2026.) In particular, this unlawful detainer case has been pending since October 2024, Defendant has previously filed a frivolous motion to dismiss, and, prior to the most recent removal, had already sought to remove this matter to federal court. Defendant’s prior removal to federal court was initiated on August 15, 2025, just four days before trial was scheduled to go forward. Correspondence provided by Plaintiff shows that Defendant held the threat of removal as a negotiation tactic. (S. DeVonne Decl., dated Aug. 14, 2025, Ex. A.)

Defendant’s first attempt to remove this action to federal court stayed this matter until October 10, 2025, and after subsequent motion practice, trial was scheduled to begin in this case on April 27, 2026. (Minute Order, April 13, 2026.) Then, Defendant filed a notice of removal to the Central District of California on April 20, 2026, and filed notice of that removal with this Court on April 22.

Given this timeline and the case history, especially since the second removal was filed days before trial was set to begin, as was the first attempt at removal, it was reasonable for this Court to conclude that, similar to the situation in *ClipperJet*, “[r]emoval was doomed from the outset,” and to make “an implied finding that defendant ...[was] acting in concert to delay the proceeding, and that [the] notice of removal should not be given effect. (*ClipperJet, supra*, 38 Cal.App.5th at 529.) Also, as with *ClipperJet*, “[a]s expected, the federal court once again summarily remanded the case.” (*Ibid.*) Here, this case was remanded back to this Court, on April 28, only eight days after the notice of removal was filed.
